

HOUSE No. 14

So much of the recommendations of the Inspector General (House, No. 11) as relates to electric vehicles and charging infrastructure and Chapter 30B, the Uniform Procurement Act (House, No. 14). State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to electric vehicles and charging infrastructure.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 30B of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out section 23 and inserting in place thereof the following
3 section:-

4 Section 23. Notwithstanding section 39M of chapter 30 or any other general or special
5 law to the contrary, a governmental body may, pursuant to this chapter, procure electric vehicles,
6 including electric school buses, and the installation of electric vehicle supply equipment as
7 defined in section 2 of chapter 25B for such electric vehicles. Electric vehicles and the
8 installation of related electric vehicle supply equipment may be procured separately or in a single
9 procurement. For the purposes of this section, electric vehicles shall be considered supplies and
10 electric vehicle supply equipment and its installation shall be considered services; provided,
11 however, that if electric vehicles and electric vehicle supply equipment and its installation are
12 procured in a single procurement both shall be considered supplies.

13 A contract under this section shall only be awarded to a bidder who: (i) possesses the
14 skill, ability and integrity necessary for the faithful performance of the work; (ii) certifies that it
15 is able to furnish labor that can work in harmony with all other elements of labor employed or to
16 be employed in the work; (iii) certifies that all employees to be employed at the worksite will
17 have successfully completed a course in construction safety and health approved by the United
18 States Occupational Safety and Health Administration that is not less than 10 hours in duration at
19 the time the employee begins work and furnish documentation of successful completion of such
20 course with the first certified payroll report for each employee; and (iv) obtains within 10 days of
21 the notification of contract award the security by bond required under section 29 of chapter 149.
22 For the purposes of this section, “security by bond” shall mean the bond of a surety company
23 qualified to do business under the laws of the commonwealth and satisfactory to the awarding
24 authority; provided, however, that if there is more than 1 surety company, the surety companies
25 shall be jointly and severally liable. Sections 26 to 27D, inclusive, of said chapter 149 shall apply
26 to any contract entered into under this section.

27 SECTION 2. Section 23 of said chapter 30B is hereby repealed.

28 SECTION 3. Section 2 shall take effect on June 30, 2030.